

SENATE No. 1516

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve indoor air quality.

PETITION OF:

NAME:

William J. Driscoll, Jr.

DISTRICT/ADDRESS:

Norfolk, Plymouth and Bristol

SENATE No. 1516

By Mr. Driscoll, a petition (accompanied by bill, Senate, No. 1516) of William J. Driscoll, Jr. for legislation to promote regulations to improve indoor air quality. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve indoor air quality.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws is hereby amended by adding the
2 following section:

3 Section 245. (a) For the purposes of this section, the following terms shall, unless the
4 context requires otherwise, have the following meanings:

5 “Agent”, an official or employee of the department or a division of the department.

6 “ASHRAE”, the American Society of Heating, Refrigerating and Air Conditioning
7 Engineers.

8 “Building”, a publicly or privately owned structure for commercial, housing or
9 governmental purposes that exposes individuals to indoor air in permanently enclosed public
10 spaces. This term does not include spaces designated and used solely for industrial purposes,
11 private spaces used solely for residential purposes, temporary structures, spaces unintended for
12 public access beyond 3 consecutive months, any structure exempted from coverage via the

commonwealth's building codes and structures owned or leased by the United States government, either wholly or in part.

"Building occupant" or "occupant", any individual who is regularly exposed to indoor air in a building.

"Building owner" or "owner", the lawful owner of the building, or a designee thereof.

"HVAC&R" shall mean heating, ventilation, air conditioning, and refrigeration.

"Indoor Air Quality" or "IAQ", the degree to which indoor air is free of excessive levels of contaminants injurious to human health.

"IAQ assessment" or "assessment", an assessment of the levels of contaminants in buildings determined to contribute to adverse health effects among exposed occupants.

"IAQ certification", a rating of building IAQ compliance that may include differing levels of adherence to specific activities or requirements in this section.

"IAQ complaint" or "complaint", documentation of actual or suspected breaches or violations of this section, or regulations promulgated under this section, through onsite measurements or observations of building conditions or HVAC&R systems, medical symptoms, or conditions of suspected or actual building-related illnesses, or other identifiable factors.

"IAQ event", a specific or limited circumstance emanating from a complaint, investigation, inspection or other notification that warrants responses by a building owner to address or remedy poor IAQ.

“IAQ inspection” or “inspection”, an onsite evaluation of actual or projected building IAQ performance initiated by the department, in collaboration with the board of building regulations and standards.

“IAQ investigation” or “investigation”, an evaluation of actual or projected building IAQ performance conducted in specific response to complaints or actual or suspected risks of harm to individuals .

“Regulation”, rules or directives created by the department or a division thereof in furtherance of this section.

“Renovation”, substantial efforts to restore or repair a building that may negatively impact IAQ onsite for a period exceeding several workdays during the course of performance.

“Significant medical conditions”, conditions attributable to building related illnesses impacting the health or safety of a cluster of no less than 5 building occupants that led affected individuals to seek medical care or are confirmed through valid tests.

(b)(1) It shall be the policy of the commonwealth that public health be protected and promoted through the regulation of indoor air quality within public buildings. In furtherance of this goal, the department or a designated division thereof shall develop a comprehensive, statewide plan to help assess and set priorities for improving IAQ in buildings through the mitigation of contaminants of indoor air quality, identification of environmental, public health and other bases for interventions, and regulatory proposals and policy options consistent with the goals of this section. The department may coordinate and support further research efforts in partnership with other commonwealth agencies, departments and international or national IAQ stakeholders, consistent with the goals of this section and as such research relates to IAQ.

(2) the department, or division thereof, may develop effective and practice process, protocols, methods and techniques for the detection and prevention of contamination in buildings consistent with existing scientific and expert knowledge and input.

(3) the department shall collect and make available the results of IAQ planning, research and prevention efforts supported or conducted by the department. This shall include information related to known or potential short-term and long-term health effects of air contaminants; actual or prospective settings or locations where exposure to harmful contaminants are likely to occur; adverse health effects of varied levels of contaminants; likely sources of exposures to specific contaminants, including particular types of buildings or materials; technical information regarding implementing programs and other methods for reducing exposures to contaminants; prevention, management or measurement technologies and their effectiveness, cost and feasibility or ease of operation; recommendations for lowering health risks to building-related illnesses by identifying, reducing and preventing exposures, and; remedial actions including elimination, substitution, engineering or administrative controls.

(4) the department may collect, analyze, and maintain surveillance data or other information related to human impacts associated with IAQ, including: the adverse health effects of varied contaminants; risk factors and sources of building-related illnesses; communicable or chronic conditions, short- and long-term injuries; preventable morbidity and mortality; disparate impacts on specific populations, feasibility and appropriateness of monitoring technologies, and efficacy of specific IAQ interventions to improve public health.

(5) In support of the development of IAQ regulations and the implementation of this section, the department or division thereof may request, obtain, and use information from public and private organizations including environmental surveillance or other data.

(c)(1) In consultation with the board of building regulations and standards, the department may identify types or classes of buildings that routinely present risks of potential or actual contaminant exposures to occupants based on probable or actual indoor air health risks typically experienced among occupants of similar buildings, probable or actual sources of building-related illnesses or exposures to contaminants, and available measures to mitigate preventable health risks to occupants consistent with ongoing, intended uses of the buildings.

(2) Pursuant to paragraph (1), the department may designate types or classes of buildings that routinely present high, medium or low risks of potential or actual exposure to contaminants during periods of full or partial occupancy.

(3) In consultation with the board of building regulations and standards, the department is authorized to examine, develop, or adopt specific techniques or standards for approved tests that accurately and reliably measure the prior or current presence of contaminants and identify sources of contamination. Provided, that such tests can not pose any known health risks to building occupants when conducted onsite, pose disproportionate environmental harms as compared to other technologies., contradict scientific consensus of appropriate, independently verified technologies, or impose significant financial burdens on building owners required to use them under this section. Such testing will occur at a frequency to be determined by the department, and the department may authorize the use of proxy testing in lieu of more specific tests.

(4) Building owners shall visibly post results of IAQ tests onsite to alert occupants and others of prior or current IAQ levels at the frequency for testing described in this subsection. Building owners shall also post the results of IAQ tests online through publicly accessible websites to be developed by the department. The results of these tests shall be posted within 48 hours following the administration of said tests. The department shall create requirements for posting IAQ results.

(5) Building owners may conduct an IAQ assessment consistent with base-level parameters determined by the department with the following parameters: frequency as required under this subsection; reviews of proper ventilation, filters, air cleaning devices and fans, adjusted for the number of building occupants per ASHRAE standards; measurable risks explicitly tied to contaminants building-related illnesses, or planned renovations, identification of potential remediable causes of poor IAQ, including pollutant pathways, contaminant sources, and more; observation of areas prone to moisture problems, visible mold, or orders associated with biological growth or water stains; use of technological or other analytical tools to screen or identify contaminants; physical conditions, placements, and operational status of HVAC&R equipment or components, and IAQ detectors or other monitors, thermal factors such as building temperatures and humidity; identification of specific products, materials, or conditions within the building that may cause excessive risk of poor IAQ or building-related illnesses absent proper ventilation, including pursuant to planned renovations, and; other determinants within or outside that may help accurate gauge health risks to occupants based on single or repeated exposures to indoor air in period of regular operations or based on planned renovations.

(6) IAQ assessments may include recommended actions, if warranted, including estimated costs to remedy or improve IAQ within buildings in compliance with this section.

Building owners may refer to these actions in making repairs, engaging in renovations, or taking other steps to improve IAQ. Building owners are obligated to repair or take remedial actions to improve IAQ deficiencies.

(7) Assessments and documented proof of remedial actions to ameliorate poor IAQ may be filed with the department pursuant to the formal processes it establishes.

(8) Building owners shall maintain information related to assessments and remedial actions at least 3 years after the date of their performance.

(d)(1) Building occupants or other aggrieved persons may file a formal IAQ complaint of an alleged IAQ event at a building to the department pursuant to the direct notification or submission of a form created by the agency. Said form shall include the name, identification, and contact information of the person/persons submitting the form; alleged factors that reasonably suggest a risk of adverse health effects or building related illnesses due to poor IAQ among building occupant; identification of specific locales within the building that may be at risk of poor IAQ; prospective, estimated, or actual number of individuals impacted; specific dates over which the alleged factors or poor IAQ have occurred or are occurring, any alleged or suspected building-related illnesses, observed data from onsite tests conducted by the building owner, independently conducted tests, assessments of occupants health symptoms, or other available data supporting the complaint; input from additional sources supporting the complaint; notice to the building owner of the complaint, and; any other state or local agencies that may have been notified or are aware of the basis for the complaint.

(2) Any complaint properly filed and received by the department shall be initially assessed by the department for its validity, including through outreach to the building owner,

building occupants and submitter(s) of the complaint. If a complaint is determined to be invalid, the department shall decline to take further action after notifying the complainant. If a complaint is determined to be initially valid, the department shall launch an IAQ investigation after notifying the building owners and the complainant.

(3) The department may conduct an investigation of an IAQ event within 90 days of determining the validity of the complaint. The investigation shall include screening, identification, and selective interviewing of building occupants; optional medical of occupants allegedly suffering from exposure to contaminants or a building related illness, provided the occupant provides written informed consent to any medical testing; results of inspections authorized by this section, IAQ assessments provided by the building owner, review of HVAC&R planning and interviews with HVAC&R personnel responsible for the design, installation, operation, or maintenance of the building systems, and; determinations of prior or contemporaneous remedial actions consistent with IAQ assessments or inspection.

(4) Investigation results and required remedial actions shall be shared with the building owners and be made available to building occupants within 30 days of the completion of the investigation.

(5) building owners must complete any required repairs or other remedial actions within 120 days of the receipt of the agencies investigation results. Written extensions may be granted by the department within the discretion of an agent of the department.

(6) Pursuant to this section, and with prior consent of and notice to building owners, agents of the department may enter a building at a reasonable time to inspect, investigate, evaluate and conduct needed tests for the department's own IAQ assessment of the building as

163 needed to determine business compliance with this section. If the state agent is denied entry into
164 the building on at least 2 distinct occasions for the same the same purposes, the agent may seek
165 an administrative search warrant to enter the building for this specific purpose. A court of the
166 commonwealth may grant an administrative search warrant provided probable cause of an IAQ
167 violation exists. Information obtained via this administrative search warrant shall be used only
168 for purposes of fulfilling the goals of this section. This section shall not limit the authority of any
169 state or local agency to conduct an administrative search or inspection of buildings under other
170 provisions of existing federal or state laws.

171 (7) The department shall establish a fee to cover the reasonable costs of performing an
172 inspection of the building, to be paid by building owners. Reasonable costs shall include
173 administration, personnel or travel expenses; instrument rentals; tests; laboratory assessments;
174 judicial expenditures; or other legitimate expenses incurred by the department. Any owner who
175 fails to pay the fee shall be subject to appropriate citations. The department may exempt certain
176 owners from paying the fee if their buildings are classified as low risk or the owners face
177 significant financial burdens in paying the fee.

178 (8) The results of any inspection shall be shared with the building owner, including
179 proposed remedies, within 30 days of conducting the inspection. At a minimum, inspection
180 results shall include clear descriptions of key findings related to core elements; identification of
181 any conditions that are actually contributing to poor IAQ at the building; guidance or options on
182 remedial actions the building owner may wish to take to address these conditions, and; set
183 procedural requirements for notifying building occupants of probable or actual risks to their
184 health, if applicable. Building owners have up to 90 days within the receipt of the department's

inspection to undertake and complete remedial actions to bring the building within compliance of the section, with the department having the authority to grant extensions within its discretion.

(9) The department may refer to filed IAQ assessments, along with documented proof of remedial actions, where made, in determining whether a specific building requires inspections. A building owner who has conducted an assessment and successfully remedied and discovered issues within 12 months prior to the date of an investigation may be exempted from an inspection if the department determines that prior compliance sufficiently ameliorates poor IAQ.

(e) (1) The department shall seek voluntary compliance of building owners with meeting provisions or requirements consistent with specific time deadlines or other state parameters in this section or regulations promulgated to support this section.

(2) The department may provide certain incentives to building owners to support voluntary compliance, including waivers of formal inspections; opportunities to apply for annual designations of buildings meeting IAQ certification with graded levels set via regulation by the department; expedited reviews of IAQ assessments for additional buildings owned or leased by the same owner and; allowance of reasonable costs related to IAQ testing, assessment or remedial actions to be tax deductible business expenses under state law.

(f)(1) Any building owner who knowingly or willfully violates or fails to comply with the terms, conditions, regulations or requirements of this section may be subject to citations or penalties as set forth in this section.

(2) The department may issue citations against offending building owners for each alleged violation; provided, that said violations shall identify the conditions, factors, dates and locations leading to the violation, as well as the specific provisions of this section or authorized

regulations substantiating the violation. Alleged violations shall be subject to specific financial penalties to be set by the department, providing that said penalties do not exceed \$10,000. Funds collected from said penalties shall be returned to the department's operating budget to support costs incurred in the implementation and enforcement of this section.

(3) Following citations, the department may undertake additional recourse against continuing offending building owners for the period of time in which a violation is unresolved, including prohibiting existing or prospective leasing of the applicable building where building occupants may be at risk of harmful exposure to contamination. The attorney general or other appropriate law enforcement agency may commence a civil action in court for severe violations.

(4) Any action under this section or regulations promulgated in support of this section is barred unless its commenced within 3 years after the cause of action accrues or was or should reasonably have been discovered by the department or other state agency.

(g) Within 12 months of the effective date of this section, the department and divisions of the department are authorized to promulgate and implement rules, orders, and regulations as are reasonable and necessary to implement and effectuate the provisions and goals of this act, based on the best available scientific evidence and other proofs of efficacy to identify, prevent, and control factors affecting IAQ within buildings. The department may regularly amend these regulations for the purposes of clarifying guidance, making essential updates, or revising regulations based on new information, emerging science, or legal requirements. Nothing in this section shall be construed to authorize the department or other state agency to carry out any program or activity that is not reasonably related to improving IAQ .

228 (h) One year following the enactment of this section, and every 2 years thereafter, the
229 department shall file a report with the clerks of the house and senate detailing the
230 implementation and enforcement of this section, including challenges facing the department and
231 possible legislative action to address said challenges.

232 SECTION 2. Notwithstanding any general or special laws to the contrary, the department
233 shall, no later than 6 months following the enactment of this act, the department of public health
234 shall prepare and submit an initial report to the clerks of the house and the senate concerning the
235 prospective impacts, effects and challenges of this act on the department.

236 SECTION 3. Section 1 shall take effect January 1, 2026.